

Court No. - 3

Case :- WRIT - C No. - 18710 of 2021

Petitioner :- Shabina Parveen

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

List revised. None is present for the petitioner.

However, learned Standing Counsel for the respondent-State and Sri Pranjal Mehrotra, learned counsel for the respondent no.4 are present.

List in the week commencing 23rd August, 2021 in the additional cause list.

Order Date :- 6.8.2021

A.Kr.

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Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rajesh Kumar

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Shri Pranjal Mehrotra, learned counsel for the respondent no. 4.

2. This writ petition has been filed praying for the following reliefs :

"I. Issue a writ, order or direction in nature of certiorari to quash the impugned Recovery Citation notice dated 25.01.20121 sum of Rs. 268942/- issued by the Tehsildar Tehsil Ghaziabad District Ghaziabad (Annexure no. 5 to this writ petition).

II. Issue a writ, order or direction in the nature of mandamus commanding and directing the respondents authorities to connect the electricity connection of the petitioner and supply the electricity.

III. Issue a writ, order or direction in the nature of mandamus commanding and directing the respondents not to adopt any coercive method against the petitioner in pursuance of the impugned Recovery Citation/ notice dated 25.01.2021 sum of Rs. 268943/- issued by respondent no. 3 (Annexure no. 5 to this writ petition)."

3. Learned counsel for the respondent no. 4/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent no. 4 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no. 4 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the

objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 5.7.2022

A. V. Singh